

25CHCV00209 25CHCV00209

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Case Number: 25CHCV00209 Hearing Date: June 23, 2026 Dept: F47

Dept. F47

Date: 6/23/26

Case #25CHCV00209

MOTION FOR

ATTORNEY'S FEES, COSTS & EXPENSES

Motion filed on 3/6/26.

MOVING PARTY: Plaintiff Richard Castaneda

RESPONDING PARTY: Defendant General Motors LLC

NOTICE: ok

RELIEF REQUESTED: An order requiring Defendant

General Motors LLC to pay Plaintiff Richard Castaneda attorney's fees (\$32,453),

costs and expenses (\$1,094.90) pursuant to Civil Code 1794(d).

RULING: The motion is granted as set forth below.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Richard Castaneda's (Plaintiff)

purchase of a new 2023 Chevrolet Suburban (the Vehicle) which was manufactured

and/or distributed and warranted by Defendant General Motors LLC

(Defendant). Plaintiff contends that after

the purchase, the Vehicle exhibited numerous defects and nonconformities which

substantially impair its use, value and safety.

Additionally, Plaintiff contends that after a reasonable number of

repair attempts Defendant and/or its authorized repair facilities have failed

to begin and complete necessary repairs within a reasonable time. Further, Plaintiff contends that Defendant

has failed to replace the Vehicle or provide restitution.

On 1/21/25, Plaintiff filed this action against Defendant

alleging various causes of action under the Song-Beverly Consumer Warranty Act as

well as a cause of action for violation of Business and Professions Code 17200. On 3/13/25, Defendant answered the

complaint.

After two rounds of mediation, in mid-February 2026, the

parties resolved the merits of the action.

Pursuant to the settlement, Plaintiff agreed to dismiss the action and

return the Vehicle in exchange for \$116,000.00 inclusive of the remaining auto

loan balance, plus reasonable attorney's fees, costs and expenses. (David Decl., Ex.1). The settlement further provides

that "[r]easonable attorneys' fees, costs, and expenses pursuant to subdivision

(d) of Section 1794 of the Civil Code shall

be determined by the court by way of a noticed motion” and also provides that

“Plaintiff is the prevailing party for purposes of said fee motion.” Id.

On 3/6/26, Plaintiff filed and served the instant motion

seeking an order requiring Defendant pay

Plaintiff attorney's fees (\$32,453), costs and expenses (\$1,094.90) pursuant to

Civil Code 1794(d) for a total award of \$33,547.90. Plaintiff has opposed the motion and

Defendant has filed a reply to the opposition.

ANALYSIS

There is no dispute that Plaintiff is entitled to recover

attorney fees, costs and expenses as the prevailing party in this action. Rather, the parties dispute the amount of

such award.

Civil Code 1794(d) provides:

“If the buyer prevails in an action

under this section, the buyer shall be allowed by the court to recover as part

of the judgment a sum equal to the aggregate amount of costs and expenses,

including attorney's fees based on actual time expended, determined by the

court to have been reasonably incurred by the buyer in connection with the

commencement and prosecution of such action.”

The lodestar method of calculation applies when

determining an award of attorney's fees under the Song-Beverly Act. Tidrick (2025) 112 CA5th 1147,

1157. The lodestar method ordinarily

begins with multiplying the number of hours reasonably spent by a reasonable

hourly rate. Id. at 1157-1158; Ketchum

(2001) 24 C4th 1122, 1134. The lodestar

may be adjusted based on factors specific to the case to fix the fee at the

fair market value of the legal services provided. Tidrick, supra. A reasonable hourly rate is the rate

prevailing in the community for similar work.

Tidrick, supra at 1157 citing PLCM Group, Inc.

(2000) 22 C4th 1084, 1095. The

prevailing party is also entitled to recover attorney fees incurred for the

preparation of the fee motion. Robertson

(2006) 144 CA4th 785, 817; Graciano (2006) 144 CA4th 140; Serrano

(1982) 32 C3d 621, 631.

Defendant has failed to establish that time spent on

certain tasks by Plaintiff's attorneys and/or paralegals in Plaintiff's

counsel's office was unreasonable, duplicative and/or that the fees in relation

to same are not otherwise recoverable. Time

spent by paralegals for client communications, document management, and

litigation support under attorney supervision is recoverable. Guinn (1994) 23 CA4th 262, 269. Additionally, the evidence indicates that

Plaintiff's counsel has already waived certain fees incurred and over 13 hours

of administrative time expended. (See

David Decl. ¶¶16-17). Further, fees

included for prospective work (e.g. in relation to reviewing the opposition to

this motion and preparing the reply to same) have now been incurred and are

recoverable. See Robertson,

supra; Graciano, supra; Serrano, supra.

However, the Court finds that Plaintiff's attorney, Chad

David, improperly seeks to recover his current \$795 hourly fee for all of his

work on this case which began in 2025 when he admits that his \$795 hourly rate did not begin until

1/1/26. (See David Decl. ¶¶10-13). The instant case is distinguishable from Robles

(2019) 38 CA5th 191 wherein the Court of Appeal advised the trial court on

remand to use the current prevailing hourly rates of the attorneys, or the

lower rates, but award interest due to the lengthy delay in the resolution of

the case. Id. at 205. In Robles, the defendant refused to

comply with the appellate court's initial opinion on the merits for three years

resulting in the issuance of a second opinion and then a third opinion in

relation to the attorney fee issue. Id.

at 194-195.

Here, the case was filed on 1/21/25, resolved on 2/11/26

and the instant motion was filed on 3/6/26 with a 6/23/26 hearing date. Additionally, at this point, there is no indication that Defendant has or will refuse to comply with any court orders.

Therefore, the Court finds that attorney David's current

\$795/hour fee may only be applied to the 9.6 hours spent on or after 1/1/26. (See David Decl. ¶15, Ex.6). Plaintiff fails to provide clear evidence

regarding the hourly fee charged by attorney David for the remaining hours

spent in the year 2025. The "Ledger

Description" provided in support of the motion lists attorney David's fee at

\$795/hour for 2025 despite the fact that his declaration states that his \$795

hourly rate did not begin until 1/1/26.

(See David Decl. ¶¶10-13, 15, Ex.6). Additionally, attorney David states that

prior to his current \$795 hourly rate, his requested and approved hourly rates

ranged from \$525/hour to \$650/hour without indicating what his exact hourly fee

was at the time of the 2025 charges in this case. (David Decl.

¶13). Therefore, the Court finds

that it is appropriate and reasonable to apply a \$525 hourly rate to the 15.6 hours

expended by attorney David in 2025 in relation to this case. The Court also rejects Plaintiff's attempt to

rationalize applying the \$795 hourly rate to all of the hours expended instead

of requesting a multiplier/enhancement.

(See David Decl. ¶¶12, 14).

Even if Plaintiff had requested a multiplier/enhancement, the Court finds that such an award is not warranted in this straight-forward lemon-law case that settled without any law and motion matters approximately a year after filing.

Based on the foregoing, the Court reduces the amount of fees requested in relation to attorney David to \$15,822.00. The Court finds that the remaining fees have been properly requested and supported.

As such, the Court awards Plaintiff \$28,241.00 in attorney fees. Defendant does not challenge the \$1,094.90

Plaintiff seeks to recover as costs. (See

Opposition, p.7:8; David Decl. ¶22, Ex.7).

Therefore, the Court awards Plaintiff a total of \$29,335.90 in attorney fees and costs pursuant to Civil Code 1794(d).

CONCLUSION

The motion is granted.

Plaintiff is awarded \$28,241.00 in attorneys' fees plus \$1,094.90 in costs/expenses for a total award of \$29,335.90, payable within 30 days.

The Court notes that in violation of CRC 3.1110(f)(4)

Defendant's counsel has failed to electronically bookmark the exhibit attached to the opposition. Counsel are warned

that failure to comply with this rule in the future may result in matters being continued so that papers can be refiled in compliance with the rule, papers not being considered and/or the imposition of sanctions.